

26CHCV01277 26CHCV01277

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(1) PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT; (2) DEFENDANT'S DEMURRER AND MOTION TO STRIKE FIRST AMENDED COMPLAINT.

(1) Motion for Leave to File Second Amended Complaint filed on June 15, 2026.

(2) Demurrer and Motion to Strike First Amended Complaint filed on June 2, 2026.

MOVING PARTY:

(1) Plaintiff,
Liliya Hill, as to the Motion for Leave to File Second Amended Complaint

(2) Defendant,
Maureen Llorente, as to the Demurrer and Motion to Strike First Amended Complaint.

RESPONDING PARTY:

(1) Defendant,

Maureen Llorente, as to the Motion for Leave to File Second Amended Complaint

(2) Plaintiff,

Liliya Hill, as to the Demurrer and Motion to Strike First Amended Complaint.

NOTICE: OK.

RELIEF REQUESTED: Plaintiff seeks leave to file the proposed Second Amended Complaint. Defendant demurs to and moves to strike portions of the First Amended Complaint.

RULING:

(1) Plaintiff's

Motion for Leave to File Second Amended Complaint is GRANTED

(2) Defendant's Demurrer and Motion to Strike

First Amended Complaint are TAKEN OFF CALENDAR.

BACKGROUND

On April 1, 2026, Liliya Hill (Plaintiff) filed the Complaint. On April 8, 2026, Plaintiff filed the First Amended Complaint.

On June 2, 2026, Maureen Llorente (Defendant) filed the Demurrer and Motion to Strike directed to the First Amended Complaint. On June 15, 2026, Plaintiff filed the Motion for Leave to File Second Amended Complaint with a supporting declaration and proposed Second Amended Complaint.

On July 20, 2026, Plaintiff filed an opposition to Defendant's Demurrer and Motion to Strike. On July 21, 2026, Defendant filed a reply, and Plaintiff filed a sur-reply.

On September 14, 2026, Plaintiff filed an amended/re-filed Motion for Leave and a separate Rule 3.1324 compliance chart under the existing reservation number. On September 17, 2026, Defendant filed an opposition.

DISCUSSION

Code of Civil Procedure section 473, subdivision (a)(1)

permits the Court, in furtherance of justice, to allow amendment of a pleading. This discretion should be exercised liberally in favor of amendment. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.)

California Rules of Court, rule 3.1324 requires a motion for leave to amend to include the proposed amended pleading and identify the allegations proposed to be deleted and added by page, paragraph, and line number. The supporting declaration must specify the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(a), (b).)

The Court construes Plaintiff's September 14, 2026 papers as supplemental papers in support of the June 15, 2026 Motion.

Here, Plaintiff states that the proposed Second Amended Complaint "adds Defendant Kevin Sullivan," "restructures 10 overlapping counts into 6 distinct causes of action," adds a trespass cause of action, and asserts a dependent-adult-abuse claim on Plaintiff's own behalf. (Pl.'s Refiled Mot. at p. 7.) Plaintiff states the amendment is necessary to place before the Court the persons allegedly responsible for Unit 301 and the allegations concerning continuing water intrusion, mold exposure, noise, and fines. (Pl.'s Refiled Mot. at p. 7.) Plaintiff identifies the relevant events as occurring on December 23, 2025, January 26, 2026, in mid-February 2026, on April 3, 2026, and in June 2026. (Pl.'s Refiled Mot. at pp. 7-8.) Plaintiff explains that she "required time following the conclusion of the continuous daily flooding in mid-February 2026 and the April 3, 2026 dismissal of the petition for restraining order to properly research, draft, and structure these legal pleadings." (Pl.'s Refiled Mot. at p. 8.) The September 14, 2026 papers also attach the proposed Second Amended Complaint and include a comparison chart identifying the proposed additions and deletions and their locations in the First Amended Complaint and proposed Second Amended Complaint. (Pl.'s Refiled Mot. at pp. 3-6, Ex. A.) The papers therefore provide the information required by rule 3.1324 concerning the nature, purpose, timing, and location of the proposed amendments.

Defendant argues that the proposed SAC "materially expands the existing action" by adding Sullivan, a new trespass claim, a dependent-adult-abuse theory, additional factual allegations, and additional remedies. (Opp. at p. 1.) Defendant further argues that "many underlying facts

were already pleaded” and that “substantial portions of the Proposed SAC were already known and pleaded before the present motion.” (Opp. at pp. 1, 6.) Defendant also notes that adding Sullivan may require service, additional discovery, separate defenses, and further factual development. (Opp. at p. 4.)

These considerations do not establish prejudice warranting denial of leave. Some of the underlying facts, including the December 23, 2025 incident and January 2026 plumbing and access issues, were known or reasonably available to Plaintiff before the June 15, 2026 Motion. (Opp. at pp. 2-3, 6.) Nevertheless, no trial date has been set. Although Defendant identifies additional service, discovery, and factual development that may result from the amendment, she does not show prejudice that would impair her ability to defend the action. Prejudice may arise where amendment would delay trial, cause loss of critical evidence, increase preparation costs, or impose additional discovery burdens. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.) No comparable prejudice is shown here. Delay alone does not warrant denial of leave absent prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.)

Defendant separately contends that the proposed SAC does not cure the alleged deficiencies in Plaintiff’s defamation theory and that the litigation privilege bars any claim based on communications made in connection with judicial proceedings. (Opp. at pp. 5-6.) These objections are more appropriately addressed through a pleading challenge to the Second Amended Complaint after it is filed. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.)

Accordingly, the Motion is granted. In light of the Court’s grant of leave to amend, Defendant’s Demurrer and Motion to Strike directed to the First Amended Complaint are TAKEN OFF CALENDAR.

The Court is mindful that both parties are self-represented. However, self-represented status does not excuse compliance with applicable procedural rules. “[M]ere self-representation is not a ground for exceptionally lenient treatment,” and, except where a particular rule provides otherwise, “the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.)

The parties are therefore admonished not to file amended,

re-filed, or supplemental versions of a pending motion under an existing reservation number absent prior leave of Court. Any materially revised motion or request for different relief must be properly noticed. (Code Civ. Proc., § 1010; Cal. Rules of Court, rule 3.1112.) Any new motion must be separately reserved in accordance with the Court's Case Reservation System procedures. Unless otherwise ordered, moving papers must be filed and served at least 16 court days before the hearing, opposition papers at least nine court days before the hearing, and reply papers at least five court days before the hearing. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(a).) Sur-replies and supplemental submissions after reply shall not be filed absent prior leave of Court. Untimely papers may be declined consideration. (Cal. Rules of Court, rule 3.1300(d).)

CONCLUSION

Plaintiff's Motion for Leave to File Second Amended Complaint is GRANTED.

Plaintiff shall file, within five court days, a Second Amended Complaint identical to the proposed Second Amended Complaint submitted with the September 14, 2026 papers.

Plaintiff shall serve the Second Amended Complaint as required by law. Defendant Maureen Llorente shall respond to the Second Amended Complaint within 30 days after service. (Code Civ. Proc., § 471.5, subd. (a).)

Plaintiff shall serve newly added Defendant Kevin Sullivan with the summons and Second Amended Complaint as required by law. Sullivan shall respond within the time prescribed by law.

Defendant's Demurrer and Motion to Strike First Amended Complaint are TAKEN OFF CALENDAR.